

[1 EDW. 8. &
1 GEO. 6.]

*Warrington Corporation
Act, 1937.*

[Ch. lix.]



CHAPTER lix.

An Act to enlarge the powers of the mayor aldermen and burgesses of the borough of Warrington for the abstraction of water from the river Mersey for the purposes of their water undertaking to make further provision with regard to the water electricity gas and markets undertakings of the Corporation and the health local government and improvement of the borough and for other purposes. A.D. 1937.
[1st July 1937.]

WHEREAS the borough of Warrington (in this Act called "the borough") is under the local government of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation") :

And whereas by virtue of the Warrington Waterworks Act 1855 and divers other enactments the Corporation are the owners of waterworks and are empowered and required to supply water to the inhabitants of the said borough and of several adjoining townships and places : 18 & 19 Vict.
c. xciii.

And whereas by the joint effect of section 21 of the Warrington Waterworks Act 1878 and section 48 of the Warrington Extension and Water Act 1890 the Corporation are empowered throughout the whole or any parts or part of their limits of supply from time to time to lay down and maintain a system of main distributing and service pipes with all necessary 41 & 42 Vict.
c. ccix.
53 & 54 Vict.
c. ccxxxvi.

A.D. 1937. — machinery and apparatus for the supply of water for trade and manufacturing purposes only separate and distinct from the system of main distributing and service pipes used for the supply of water for domestic purposes and the Corporation have for many years carried into effect the powers so conferred upon them :

19 & 20
Geo. 5.
c. lxxix.

And whereas by the Warrington Corporation Water Act 1929 the Corporation were empowered to construct works for the purpose of abstracting water from the river Mersey and to appropriate distribute and use the same for the supply of water for trade and manufacturing purposes throughout their limits for the supply of water and it was by section 22 of that Act provided amongst other things that unless authorised by Act of Parliament the Corporation should not abstract by means of the said works quantities of water in excess of the quantities referred to in that section :

And whereas the supply of water from the water-works of the Corporation is inadequate to meet the present and growing demand of the inhabitants of the area in which the Corporation are supplying water and it is expedient to empower the Corporation to abstract further water from the river Mersey for enabling them to meet the requirements of those inhabitants in regard to the supply of water for trade and manufacturing purposes :

And whereas it is expedient to make further provision with regard to the water undertaking of the Corporation and the supply of water by them :

And whereas in pursuance of the Warrington Electricity Act and Orders 1898 to 1931 the Corporation are empowered to supply electricity within the borough and within certain areas in the neighbourhood thereof and it is expedient that the further provisions with regard to the supply of electricity which are set forth in this Act should be enacted :

And whereas the Corporation are the owners of a markets undertaking and it is expedient to confer powers upon the Corporation in regard to that undertaking and in particular with reference to the removal of their market buildings and to provide for the increase of the stallages rents and tolls which

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the Corporation may take in respect of markets and slaughter-houses in pursuance of the Warrington Improvement and Market Act 1854 : A.D. 1937.
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17 & 18 Vict.
c. viii.

And whereas it is expedient that the powers of the Corporation in relation to the local government and improvement of the borough should be enlarged as by this Act provided :

And whereas it is expedient to confer further powers upon the Corporation with reference to the development of lands :

And whereas it is expedient to make further provision with regard to the finances of the Corporation and the application of the revenues of their several undertakings :

And whereas the Corporation have adopted the Local Government and other Officers' Superannuation Act 1922 and it is expedient to enact the further provisions which are in this Act contained with regard to the payment of superannuation allowances by the Corporation and as to the conditions under which allowances and other payments may be paid or made to officers and servants of the Corporation and to the dependants of such officers and servants : 12 & 13
Geo. 5. c. 59.

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed : 23 & 24
Geo. 5. c. 51.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Warrington Short title.
Corporation Act 1937.

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2. This Act is divided into Parts as follows :—

PART I.
—cont.
Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Water supply.

Part III.—Electricity.

Part IV.—Markets and weighing machines.

Part V.—Sale of coke &c.

Part VI.—Superannuation.

Part VII.—Financial provisions.

Part VIII.—Miscellaneous provisions.

Incorporation of Acts.

3. The Lands Clauses Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act (except the provisions of those Acts with respect to the purchase and taking of lands otherwise than by agreement and except section 127 of the Lands Clauses Consolidation Act 1845).

8 & 9 Vict.
c. 18.

Interpretation.

26 Geo. 5. &
1 Edw. 8.
c. 49.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Act 1936 shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“ The borough ” means the borough of Warrington ;

“ The Corporation ” means the mayor aldermen and burgesses of the borough ;

“ The town clerk ” and “ the treasurer ” mean respectively the town clerk and the treasurer of the borough ;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough ;

38 & 39 Vict.
c. 55.

“ The Public Health Acts ” means the Public Health Act 1875 and the Acts amending and extending the same ;

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PART I.

—cont.

“ The Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act; 9 & 10 Geo. 5. c. 57.

“ The Act of 1933 ” means the Local Government Act 1933;

“ The Act of 1922 ” means the Local Government and other Officers’ Superannuation Act 1922;

“ The water undertaking ” “ the gas undertaking ” “ the electricity undertaking ” “ the transport undertaking ” and “ the markets undertaking ” mean respectively the water undertaking the gas undertaking the electricity undertaking the transport undertaking and the markets undertaking of the Corporation;

“ The electricity limits ” means the limits within which the Corporation are for the time being authorised to supply electricity;

“ Daily penalty ” means a penalty for each day on which an offence is continued after conviction;

“ The Corporation undertakings ” means the water undertaking the gas undertaking the electricity undertaking the transport undertaking and the markets undertaking and any other undertaking of the Corporation as from time to time existing from which revenue is derived;

“ Weighing machine ” means a weighing machine available for the use of the public for the purpose of ascertaining the weight of any vehicle or the loading thereof;

“ Statutory borrowing power ” includes a power of borrowing money conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 of the Act of 1933;

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any

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PART I.

—cont.

38 & 39 Vict.
c. 83.

Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any security of the Corporation;

“Authorised security” means any mortgage stock bond or other security which the Corporation are for the time being authorised to grant create or issue or upon or by means of which the Corporation are for the time being authorised to raise money;

“The Minister” means the Minister of Health;

“The Act of 1854” “the Act of 1911” and “the Act of 1929” mean respectively the Warrington Improvement and Market Act 1854 the Warrington Corporation Act 1911 and the Warrington Corporation Water Act 1929.

1 & 2 Geo. 5.
c. x.

PART II.

WATER SUPPLY.

Power to

take waters.

5. Section 22 (Power to take waters) of the Act of 1929 is hereby repealed and in lieu thereof the following provisions shall have effect (that is to say):—

(1) Subject to the provisions of the Act of 1929 as modified by this section the Corporation may abstract collect and divert the waters of the river Mersey at the point of intake referred to in the Act of 1929 (being the point of commencement of Work No. 2 authorised by that Act) by means of Work No. 1 and Work No. 2 authorised by the Act of 1929 and may appropriate distribute and use the same for the supply of water for trade and manufacturing purposes throughout the limits for the time being of the Corporation for the supply of water:

(2) Unless authorised by Act of Parliament the Corporation shall not—

(i) in any period of seven days abstract by means of the said works a total quantity

of water which will exceed in such period an average of nine million gallons per day of twenty-four hours;

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PART II.
—cont.

(ii) on any one day (other than a Monday) abstract by means of the said works a total quantity of water exceeding ten and one-half million gallons;

(iii) on any Monday abstract by means of the said works a total quantity of water exceeding nine million gallons :

- (3) Section 23 (For protection of Manchester Ship Canal Company) of the Act of 1929 shall be read and have effect as if the expression "under the powers of the Warrington Corporation Act 1937" were substituted for the expression "under the powers of this Act" in subsection (3) of that section.

6. The following provisions for the protection of James Fairclough and Sons Limited (in this section called "the company") shall except so far as may be otherwise agreed in writing between the Corporation and the company apply and have effect (that is to say):—

For protec-
tion of
James
Fairclough
and Sons
Limited.

- (1) (a) The Corporation shall pay to the company compensation in respect of any loss which they may suffer in any year by the abstraction of water under the provisions of this Act from the river Mersey by means of Work No. 1 and Work No. 2 authorised by the Act of 1929 a sum as follows :—

(i) if the average daily quantity so abstracted in such year does not exceed one million gallons the sum of twenty pounds;

(ii) if the average daily quantity so abstracted in such year exceeds one million gallons but does not exceed two million gallons the sum of forty pounds;

(iii) if the average daily quantity so abstracted in such year exceeds two million gallons but does not exceed three million gallons the sum of sixty pounds;

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PART II.

—cont.

(iv) if the average daily quantity so abstracted in such year exceeds three million gallons a sum to be calculated according to a scale to be determined as soon as may be after the passing of this Act by a single arbitrator as provided by paragraph (d) of this subsection;

(b) The first payment to be made by the Corporation to the company under the provisions of paragraph (a) of this subsection shall be calculated for the first complete period of one year commencing on the date of this Act and such payment shall be made within fourteen days after the expiration of that period unless in any case there be a dispute as to the amount of such payment in which case the amount payable shall be paid within seven days after the same has been ascertained under the provisions of paragraph (d) of this subsection and each subsequent payment shall be made within fourteen days after the expiration of each subsequent period of one year in which water is abstracted by the Corporation as aforesaid or (in the event of dispute) within seven days from the determination thereof;

(c) The Corporation shall to the reasonable satisfaction of the company provide and maintain meters for recording the quantities of water abstracted from the river Mersey by means of the works aforesaid and such meters and the records thereof shall at all reasonable times be open to inspection and examination by the company;

(d) Any question arising between the Corporation and the company under the foregoing provisions of this subsection shall be referred to and determined by a single arbitrator to be appointed by the President of the Institution of Civil Engineers on the application of the Corporation or the company after notice in writing to the other of them and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination:

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(2) Except as expressly provided in this Act nothing contained therein shall prejudice take away or affect any rights which may be held by the company at the date of this Act in the river Mersey or the waters of that river : A.D. 1937.
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PART II.
—cont.

(3) Section 24 (For protection of James Fairclough and Sons Limited) of the Act of 1929 is hereby repealed.

7.—(1) The powers conferred upon the Corporation by section 33 (Byelaws for preventing waste &c. of water) of the Warrington Corporation Act 1899 shall be extended so as to enable the Corporation to make byelaws as to the testing and stamping of valves and other apparatus and for prescribing the charge to be made for such testing and stamping. Further byelaws for preventing waste &c. of water.
62 & 63 Vict.
c. ccxxv.

(2) Any person who shall forge or counterfeit any stamp or mark used by the Corporation or by the authority of the Corporation for any of the purposes of the said section 33 as amended by this section or who shall use or supply anything marked with any such stamp or mark knowing the same to be forged or counterfeited shall for every such offence be liable to a penalty not exceeding twenty pounds.

(3) Nothing in this section or in any byelaw made thereunder shall apply to any water fittings used on any premises (not being or being used as a hotel or dwelling-house) belonging to and forming part of the railway of a railway company or the undertaking of the Manchester Ship Canal Company.

PART III.

ELECTRICITY.

8.—(1) The Corporation by means of an order made by the Corporation and submitted to the Minister of Transport and confirmed by him may be authorised to purchase land within the electricity limits compulsorily for the purpose of the erection thereon in pursuance of the powers of the Acts and Orders relating to the electricity undertaking of a station for transforming converting or distributing electricity and sections 161 162 174 175 and paragraphs (a) (b) and (c) of section 179 of the Act of 1933 and the Sixth Acquisition of land for sub-stations.

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PART III.
—cont.

Schedule to that Act shall subject to the provisions of this section apply in relation to the purchase of land under this section as if such purchase were authorised by a compulsory purchase order made under the Act of 1933 but subject to the following adaptations that is to say for references to the local authority purchasing the land there shall be substituted references to the Corporation for references to the Minister there shall be substituted references to the Minister of Transport and anything which has to be prescribed shall be prescribed by the Minister of Transport in such manner as he may think fit.

1 Edw. 7.
c. 22.10 & 11
Geo. 5. c. 80.

(2) Nothing in this section or in any order made thereunder shall authorise the compulsory acquisition of any land which at the date of the order forms part of any park garden or pleasure ground or is otherwise required for the amenity or convenience of any house or which forms part of any premises occupied as a factory or workshop to which the Factory and Workshop Act 1901 applies or which has been acquired for the purpose of any such factory or workshop or which at the date of the order forms part of any land which is in use as an aerodrome licensed pursuant to an order made under the Air Navigation Act 1920 or any Act amending replacing or consolidating the same.

(3) Nothing in this section or in any order made thereunder shall release the Corporation from any restrictions or conditions imposed by or under any general or local Act for the time being in force.

(4) If an order is made under this section for the purchase of land which any person has specific statutory power to acquire compulsorily such person shall be entitled to make objection to the Minister of Transport to the confirmation of such order and any such objection if duly made shall for the purpose of sub-section (4) of section 161 of the Act of 1933 as applied by this section be deemed to have been made by a person upon whom notice is required to be served.

Further
provisions
as to way-
leaves.
9 & 10
Geo. 5.
c. 100.

9. The Corporation may agree with the owner or occupier of any land across which any electric line has been placed or across which it is intended by the Corporation to place any such line (in either case under the provisions of section 22 of the Electricity (Supply) Act 1919) that a term or condition upon which they

may place the said line across such land shall be the payment by the Corporation to such owner or occupier of a sum of money in gross and the payment of such sum of money shall if so agreed between the parties secure for the Corporation as against such owner or occupier (as the case may be) and his executors administrators successors and assigns the right to retain and maintain such line across the said land for such period as may be agreed.

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PART III.
—cont.

10. Subject to the provisions of the Electricity (Supply) Acts 1882 to 1936 and to the provisions of the schedule to the Electric Lighting (Clauses) Act 1899 the Corporation may in or under any street repairable by the inhabitants at large or dedicated to public use and (with the consent of the persons liable to repair the same) in or under any street not so repairable or not dedicated to the public use and being in either case a street within the electricity limits construct and maintain sub-stations transforming stations and other works in connection with the electricity undertaking and may in any such street as aforesaid provide and maintain all such means of access and approach to such sub-stations transforming stations and works as may be necessary or convenient Provided that—

Power to construct electrical sub-stations under streets.
62 & 63 Vict. c. 19.

- (a) Where in the opinion of the Corporation the consent of the person liable to repair any street not repairable by the inhabitants at large or not dedicated to the public use is unreasonably withheld the Corporation may appeal to a court of summary jurisdiction who shall have power to allow the construction and maintenance of such sub-stations transforming stations and works subject to such terms and conditions as they may think reasonable or to disallow the same;
- (b) The Corporation shall not construct any such sub-station transforming station or work
 - (i) in or upon any bridge carrying a street over a railway of a railway company or any bridge belonging to the Manchester Ship Canal Company or the immediate approaches to any such bridge or under any bridge carrying a railway of a railway company over a street or within fifteen feet of any portion of any

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PART III.
—cont.

abutment or wing wall of any such bridge without the consent of the railway company or the said canal company (as the case may be) which consent shall not be unreasonably withheld or (ii) so as to interfere with or render less convenient the access to or exit from any station or depot of a railway company or any depot or warehouse of the said canal company; and

- (c) The Corporation shall not construct any such sub-station transforming station or work in any county road in the administrative county of the county palatine of Chester without the consent of the county council of that county.

Power to
break up
private
streets.

11. If the owner or occupier of any premises erected or in process of erection within the electricity limits on land abutting on any street laid out as such but not dedicated to the public use or if so dedicated not repairable by the local authority (including a county council) applies to the Corporation for a supply of electricity to those premises then—

- (a) so much of any Act or Order applying to the Corporation as requires the consent of the person by whom the street is repairable to the breaking up by the Corporation of the street shall not have effect in relation to the street;

10 & 11 Vict.
c. 15.

- (b) the Gasworks Clauses Act 1847 in its application to the Corporation shall have effect in relation to the land comprised in that street as if section 7 thereof had been excepted from incorporation with the enactments applying to the Corporation; and

- (c) the authority who would be responsible for the maintenance and repair of the street if it were repairable by the inhabitants at large shall have the like rights under section 15 of the schedule to the Electric Lighting (Clauses) Act 1899 as are thereby conferred on the person by whom the street is repairable :

Provided that nothing in this section shall apply to any street (i) belonging to and forming the approach

to any station or depot of any railway company or (ii) belonging to the Manchester Ship Canal Company and forming the approach to any canal dock railway bridge works warehouse or depot of that company or (iii) carried by any swingbridge belonging to the said Manchester Ship Canal Company or (iv) used as a towpath along any river or canal in respect of the navigation of which the said Manchester Ship Canal Company have statutory rights of demanding tolls or dues nor shall the Corporation in carrying out the works authorised by this section unreasonably obstruct or interfere with the convenient access to any such street.

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PART III.
—cont.

12.—(1) Notwithstanding anything contained in section 7 of the Gasworks Clauses Act 1847 the Corporation may with the consent in writing of the owner of any building or any bridge over any street attach thereto such brackets electric lines and attachments (in this section called "attachments") as may be required for the purposes of the electricity undertaking.

Attachment
of brackets
&c. to
buildings
and bridges.

(2) Where in the opinion of the Corporation any consent under subsection (1) of this section is unreasonably withheld they may make complaint to a court of summary jurisdiction who may by order either allow the attachments subject to such terms (if any) as to compensation or rent or otherwise as they may think fit or disallow the attachments.

(3) Any person aggrieved by an order made by a court of summary jurisdiction under the provisions of this section may appeal against the order to a court of quarter sessions and the Corporation may likewise appeal against the refusal of a court of summary jurisdiction to make any such order.

(4) The provisions of subsection (2) of this section shall not apply in relation to—

- (a) any building forming part of an aerodrome; or
- (b) any building which the owner thereof alleges to be a building of architectural or historic interest; or

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PART III.
—cont.

(c) any building or bridge owned by any highway authority railway company or gas undertakers; or

(d) any bridge (not being a swingbridge) belonging to the Manchester Ship Canal Company or any building used for the purposes of their undertaking;

but if in the opinion of the Corporation any consent under subsection (1) of this section is unreasonably withheld in relation to any such building or bridge they may appeal in the case of a building owned by gas undertakers to the Board of Trade and in any other case to the Minister of Transport and the Board or Minister may by order either allow the attachments subject to such terms (if any) as to compensation or rent or otherwise as they or he think fit or disallow the attachments :

Provided that the Minister of Transport shall—

(i) before exercising his powers under this section in relation to any building forming part of such an aerodrome as aforesaid consult with the Secretary of State for Air;

(ii) before exercising his powers under this subsection with respect to any building alleged to be of architectural or historic interest consult with the Commissioners of Works.

(5) No attachments shall be affixed to any swingbridge belonging to the Manchester Ship Canal Company without the consent of that company.

(6) Where any attachments have been affixed to a building or bridge under this section and the person who gave the consent or who was the owner when the order allowing the attachments was made ceases to be the owner of the building or bridge the subsequent owner may give to the Corporation notice in writing requiring them to remove the attachments and subject to the provisions of this subsection the Corporation shall within three months after the service of the notice remove the attachments :

Provided that the provisions of subsection (2) and subsection (3) of this section shall apply in relation

to any such notice as they apply in relation to a refusal of a consent to the making of attachments. A.D. 1937.

(7) Where any attachments have been made under this section to any building or bridge the owner of the building or bridge may require the Corporation at their own expense temporarily to remove the attachments where necessary during any reconstruction or repair of the building or bridge.

PART III.
—cont.

(8) In this section—

The expression “owner”—

(a) in relation to a building occupied under a tenancy for a term of years whereof five years or more remains unexpired means the occupier of the building;

(b) in relation to a building occupied under any other tenancy means the person who is receiving the rack rent or who would receive the rack rent if the building were let at a rack rent;

(c) in relation to a building forming part of an aerodrome means (notwithstanding anything in this subsection) the person having control of the aerodrome;

and the expression “own” shall be construed accordingly;

The expression “rack rent” means in relation to a building a rent which is not less than two-thirds of the full net annual value of the building; and

The expression “aerodrome” means an aerodrome licensed pursuant to an order made under the Air Navigation Act 1920 or any Act amending replacing or consolidating the same.

13.—(1) For the purpose of supplying electricity to any premises to which the Corporation are for the time being authorised to supply electricity the Corporation may lay down place maintain and use electric lines in order to connect such premises to a service line already laid by the Corporation for the purpose of affording a supply of electricity to adjoining premises and for that purpose may cut or otherwise

Power to lay down connecting lines in certain cases.

A.D. 1937. interfere with any party wall or fence to such premises and adjoining premises.

PART III.
—cont.

(2) In relation to any such electric lines as aforesaid the Corporation shall have the powers and be subject to the provisions of sections 17 18 20 and 77 of the schedule to the Electric Lighting (Clauses) Act 1899 and those provisions so far as applicable shall be incorporated with this Act and the Corporation shall be deemed to be the undertakers :

Provided that section 20 of the said schedule in its application to the powers conferred by this section shall have effect as if after the words "electric signalling communication" wherever they occur there were inserted the words "or electrical control of railways."

(3) The provisions of section 14 of the said schedule so far as they relate to the Postmaster-General shall extend and apply to the laying down or construction by the Corporation of any electric line under the provisions of this section.

45 & 46 Vict.
c. 56. (4) In this section the expression "electric line" shall have the same meaning as in the Electric Lighting Act 1882.

(5) The provisions of this section shall not apply to any premises (not being a dwelling-house) belonging to a railway company or the Manchester Ship Canal Company.

Further
powers as to
entry upon
premises.

14.—(1) The powers conferred on the Corporation by section 24 of the Electric Lighting Act 1882 of entering premises shall be extended as follows :—

(a) The premises which may be entered shall include all premises in the electricity limits in which electric fittings are being or have been installed with a view to taking a supply of electricity from the Corporation ;

(b) The purposes for which premises may be entered shall include the following purposes that is to say the inspection of all meters and electric fittings on the premises whether belonging to the Corporation or not the ascertainment of whether or not there is or has been any contravention of any of the Acts or Orders

applying to the Corporation or of any regulation or byelaw made thereunder and (where the Corporation are authorised under the provisions of any such Act Order regulation or byelaw to cut off the supply of electricity to the premises) the cutting off of such supply.

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PART III.
—cont.

The Corporation shall not have any power of entry into any such premises except through an officer or employee duly authorised by the Corporation who shall if so required produce his authority.

(2) Any person who shall refuse to admit any such officer of the Corporation to any premises which they are entitled to enter in pursuance of the said section 24 as amended by this section or shall hinder any such officer from entering any such premises or from exercising the powers conferred by the said section as so amended shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) The provisions of this section shall not apply to or in respect of any building or premises (not being a dwelling-house) belonging to and used by any railway company for the purposes of their railway or forming part of any station or goods depot or belonging to and used by the Manchester Ship Canal Company for the purposes of their undertaking.

(4) For the purposes of this section "electric fittings" include electric lines meters accumulators fittings works and apparatus for the supply of electricity.

15. If any person without lawful excuse (the proof whereof shall lie on him) shall wilfully interfere with any electric line or other work or apparatus used for or in connection with the supply of electricity by the Corporation or do or cause to be done anything which is calculated to interfere with or damage any such work or apparatus he shall for every such offence (without prejudice to any other liability or cause of action which may arise out of or by reason of such act) be liable to a penalty not exceeding five pounds.

Penalty for
interference
with works.

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PART III.
—cont.Provisions
as to supply
of electricity
by agree-
ment.

16. A consumer supplied with electricity by the Corporation under the terms of any agreement shall be deemed to be a person to whom the Corporation may be and are required to supply energy within the meaning of section 30 of the schedule to the Electric Lighting (Clauses) Act 1899 and—

- (a) the provisions of that section shall apply to the supply afforded by the Corporation under such agreement;
- (b) any failure on the part of the Corporation to supply energy to such consumer under the agreement shall not render them liable for any damages occasioned to such consumer by reason of such failure unless the same is caused by or in consequence of the wilful neglect or default of the Corporation:

Provided that—

- (i) the provisions of this section shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions; and
- (ii) nothing in this section shall apply in relation to any agreement which expressly excludes the application of this section.

As to maxi-
mum power
which may
be de-
manded.

17. Except in the case of electricity supplied in pursuance of any agreement the maximum electrical power with which any consumer shall be entitled to be supplied by the Corporation shall not include any supply of electricity taken on extraordinary occasions unless such consumer shall pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Corporation in order to meet the possible maximum demand for the premises of such consumer Any question as to whether the provisions of this section apply and if so the sum to be paid shall be determined in default of agreement by arbitration under section 28 of the Electric Lighting Act 1882.

18.—(1) The Corporation may make byelaws for the purpose of preventing fire or any injury to persons in any building or premises supplied or proposed to be supplied with electricity by the Corporation with respect to the nature material workmanship and mode of arrangement of the wires apparatus and fittings in any such building or premises and required or used for the purpose of such supply and such byelaws may provide for the inspection by the electrical engineer of the Corporation or any person authorised by him of any such wires apparatus or fittings which are being installed in any building and may require that reasonable notice shall be given to the Corporation of the intended installation of any such wires apparatus or fittings and the Corporation may refuse to supply electricity or may cut off and discontinue the supply of electricity to any building or premises in which such byelaws are not complied with.

(2) The provisions of this section shall have no application to any place or premises occupied as a factory or workshop or to which the Factory and Workshop Act 1901 applies and shall not in any way affect the operation of that Act.

(3) Nothing contained in this section or in any byelaw to be made thereunder shall apply to or in respect of any building or premises (other than a dwelling-house) belonging to and used by a railway company or the Manchester Ship Canal Company for the purpose of their railway undertaking or canal undertaking (as the case may be).

19.—(1) Where the charges made by the Corporation for electricity supplied by them for one purpose are less than the charges made by them for electricity supplied for another purpose electricity supplied by the Corporation for the first-mentioned purpose shall not without the consent in writing of the Corporation be used (whether after transformation or conversion or not) for the last-mentioned purpose and if any person to whom any electricity is supplied uses it or suffers it to be used in contravention of the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

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PART III.

—cont.

Byelaws as
to appa-
tus and
fittings.

Use for one
purpose of
electricity
supplied for
another
purpose.

A.D. 1937.

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PART III.
—cont.

(2) Where a person is convicted of an offence under this section in respect of the use of electricity for any purpose the court may direct that all or any portion of the electricity which has been supplied to him by the Corporation within one year previous to the date when the proceedings were instituted at a rate of charge lower than the rate of charge appropriate for electricity supplied for the said purpose shall be charged for at the last-mentioned rate.

(3) For the purposes of this section electricity shall not be deemed to be used for lighting purposes by reason only that it is used for the purposes of some electrical apparatus which contains a lamp if the purposes of the apparatus as a whole are not lighting purposes.

Corporation
may refuse
to supply
electricity
in certain
cases.

20. The Corporation may refuse to supply electricity to any person from whom payment for the supply of electricity or meter rent is for the time being in arrear (not being the subject of a bona fide dispute) whether the payment be due to the Corporation in respect of the premises for which a supply is demanded or in respect of other premises.

For deter-
mining
stand-by
supplies.
12 & 13
Geo. 5. c. 46.

21. If any question shall arise under section 23 of the Electricity (Supply) Act 1922 as to whether a supply of electricity is demanded or received for the purpose of a stand-by supply only or as to whether a supply of electricity or of gas steam or other form of energy is in use or ready for use for the purposes for which a stand-by supply of electricity is required the same shall in default of agreement be determined by arbitration under section 28 of the Electric Lighting Act 1882.

As to use of
trans-
formers.

22. Where a separate transformer is provided at the expense of the Corporation for the purpose of affording a supply of electricity to any consumer the Corporation may subject to the provisions of the agreement under which the transformer was provided use such transformer for the purpose of affording a supply of electricity to other consumers so long as such use does not prejudice or interfere with the supply for which such transformer was originally provided so however that the powers conferred by this section shall not enable the Corporation to extend the transformer so provided beyond the limits of the original site thereof.

[1 EDW. 8. & Warrington Corporation
1 GEO. 6.] Act, 1937.

[Ch. lix.]

23.—(1) Where a meter supplied by the Corporation to a consumer is found on a test to register erroneously to a degree exceeding the degree permissible as respects meters of the class to which the meter belongs it shall in the absence of agreement to the contrary be deemed to have registered erroneously to the degree so found from the penultimate date on which the register of the meter was ascertained before the date on which the meter was tested or removed for the purpose of the test except in a case where the meter is proved to have begun to register erroneously as aforesaid on some date after such penultimate date.

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PART III.
—cont.

Period of
error in
defective
meters.

(2) The amount of the allowance to be paid to or the surcharge to be made upon such consumer by the Corporation shall be paid by or to the Corporation as the case may be and in the case of a surcharge shall be recoverable in the like manner as charges for electricity are recoverable.

(3) Nothing in this section shall affect the rights of any undertakers under section 38 of the Gasworks
Clauses Act 1871 (which relates amongst other things
to the injuring of meters).

34 & 35 Vict.
c. 41.

(4) The Corporation shall notify the consumer at least forty-eight hours in advance of any test of his meter and shall notify the consumer of the result of the test.

24.—(1) The provisions of section 38 of the Gasworks Clauses Act 1871 incorporated with the Electric Lighting Act 1882 shall apply to any person who wilfully fraudulently or by culpable negligence injures or detaches or suffers to be injured or detached any of the sealing or locking devices attached to any sealed or locked receptacle meter or apparatus inserted by the Corporation in any electric line within a consumer's premises or who opens or suffers to be opened any such sealed or locked receptacle meter or apparatus.

Protection
of seals &c.
belonging to
Corporation.

(2) If any person accidentally injures or detaches or suffers to be injured or detached any such sealing or locking device as aforesaid he shall within forty-eight hours of such injury or detachment give notice in writing thereof to the Corporation and any person who fails to comply with the provisions of this subsection shall be liable to a penalty not exceeding five pounds.

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PART III.
—cont.Form of
notice by
consumer to
discontinue
supply.

25.—(1) A notice to the Corporation from a consumer for the discontinuance of a supply of electricity shall not be of any effect unless it be in writing signed by or on behalf of the consumer and left with or sent by post to the Corporation.

(2) Notice of the effect of this section shall be endorsed on any demand note for charges for electricity.

As to
charges for
electric
fittings &c.

26. If the Corporation commence proceedings for the summary recovery of a sum due to them for the supply of electricity any other payment due to the Corporation by the same consumer for the sale hire connection repair or maintenance of lamps meters electric lines fittings apparatus and appliances for lighting heating or motive power and for all other purposes for which electricity can or may be used may be included in the same summons and may be recovered summarily as a civil debt provided the amount due in respect thereof does not exceed twenty pounds.

PART IV.

MARKETS AND WEIGHING MACHINES.

Further
powers as
to markets.

27. The Corporation without prejudice to any other powers conferred upon them by the Act of 1854 or by any other enactment shall have the following powers in relation to the markets undertaking (namely) :—

(1) They may from time to time alter the places at which the markets of the Corporation respectively are or may be held and may establish and hold new markets and discontinue the whole or any part of such existing or new markets :

(2) They may from time to time provide market places and market houses for the sale of any marketable commodities or marketable animals and places for fairs together with all such market stands buildings offices approaches appliances conveniences and things as may be necessary or proper or incidental to the carrying on of any such matters :

(3) They may alter enlarge improve extend reconstruct and rebuild their existing market houses and the shops and buildings under the same or they may erect or provide and maintain new buildings therefor and in connection with or as part of such market house or new buildings or any market place or any of their markets or the markets undertaking they may maintain and may erect or provide offices shops stores warehouses toll-houses or other premises for receipt of tolls and other tenements or buildings :

A.D. 1937.
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PART IV.
—cont.

(4) They may for the aforesaid purposes or any of them or for any purpose of or in connection with any of their markets or the markets undertaking with the consent of the Minister appropriate and use any lands for the time being vested in or belonging to them.

28.—(1) For Schedule (B) to the Act of 1854 there shall be substituted on and from the first day of September nineteen hundred and thirty-seven the First Schedule to this Act and on and from that date section XXIX (As to stallages rents and tolls) of the Act of 1854 shall (subject to the provisions of subsection (2) of this section) have effect as if the First Schedule to this Act were referred to therein instead of Schedule (B) to the said Act of 1854.

Market and slaughter-house stallages and tolls.

(2) The Corporation may with the sanction of the Minister from time to time alter or add to the stallages rents and tolls mentioned in the First Schedule to this Act and any such altered stallages rents and tolls shall as from the date on which they come into operation be substituted for the corresponding stallages rents and tolls payable under the said schedule.

29. Section XXXVI (Power to lease stalls &c.) of the Act of 1854 is hereby repealed and notwithstanding anything contained in that Act the Corporation may let any of the stalls standing places benches or other conveniences in the market places to any person for any term not exceeding three years and upon such terms and conditions as the Corporation may think fit.

Power to lease stalls &c.

A.D. 1937.

PART IV.
—cont.Names of
weighing
machine
keepers to
be written
on premises.

30. Every person keeping a weighing machine shall cause his full name and the words "weighing machine keeper" to be painted in capital letters at least two inches high and proportionately broad on the outside of the front of the premises to which such weighing machine is attached and so that the same shall be plainly and distinctly visible and legible during all the time that he shall continue to keep such weighing machine and in default shall be liable to a penalty not exceeding five pounds.

Offences by
weighing
machine
keepers and
others.

31. Any person keeping or who acts as a keeper of a weighing machine who shall—

- (a) during ordinary business hours (which expression for the purposes of this section means from eight o'clock in the morning till six o'clock in the afternoon on week-days other than Saturday and from eight o'clock in the morning till half-past twelve in the afternoon on Saturdays) wilfully neglect on application duly to weigh any vehicle with or without loading that shall come to the machine kept by him to be weighed;
- (b) not fairly weigh any such vehicle with or without loading;
- (c) not deliver to the purchaser of any such loading or any person interested therein on application a ticket or account containing the true weight of such loading;
- (d) give to the driver of any such vehicle a false ticket or account of the weight of such vehicle or the loading thereof;
- (e) weigh any vehicle knowing that anything had been added to the loading thereof so as to increase the weight of the same or that the wheels thereof had been changed between the time of the same being weighed with its loading and the time of its coming back to be again weighed without its loading and shall not give immediate notice thereof to the person interested therein; or

(f) knowingly assist in or connive at any fraud to be committed or attempted concerning the weighing of any such vehicle or the loading thereof or shall make or connive at making any false representation of the weight of the same respectively;

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PART IV.
—cont.

shall be liable to a penalty not exceeding five pounds :

Provided that paragraphs (a) and (b) of this section shall not impose upon a railway company an obligation to weigh any vehicle.

32. The Corporation may make byelaws for prescribing the form of the tickets or accounts to be delivered by keepers of weighing machines to persons in charge of vehicles with or without loading bringing such vehicles to be weighed.

Byelaws as to form of weigh tickets.

33.—(1) The driver of any vehicle loaded with any goods to be sold by reference to the weight of such loaded vehicle shall at the request of the buyer or seller of any such goods or the person on whose behalf the same shall be consigned or their respective agents or of an inspector of weights and measures or other officer appointed for the purpose by the Corporation take such vehicle with or without the loading thereof to be weighed by a weighing machine.

Drivers of vehicles to take them to weighing machines on request.

(2) If such vehicle shall be required to go a greater distance from the regular course of the road by which it would be otherwise necessary to pass than half a mile the owner of such vehicle shall be paid sixpence for every half-mile that such vehicle shall be taken out of the direct road as aforesaid.

(3) All such charges for carriage together with the tolls or fees to be paid for weighing any such vehicle shall be paid by the person requiring the same to be weighed and such charges for carriage shall if demanded be paid before the driver of such vehicle shall be obliged to go out of his way for the purpose of having the same weighed.

(4) The driver of any such vehicle who shall not upon being requested and paid such charges as aforesaid if demanded take the same to such weighing machine

A.D. 1937. as hereinbefore is directed or shall refuse to assist in the weighing of the same in such manner as the drivers of vehicles are used and accustomed to do shall be liable to a penalty not exceeding five pounds.

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PART IV.
—cont.

(5) For the purposes of this section the word "driver" includes the owner driver or person in charge of any vehicle.

Penalties
on persons
committing
frauds.

34. Any person who in regard to the weighing of any vehicle at any weighing machine—

- (a) at or before the time of weighing any such vehicle places or knowingly leaves any matter or thing in or about the same other than the proper loading thereof;
- (b) alters any ticket denoting the weight of any such vehicle or of the loading of the same;
- (c) makes or uses or is privy to the making or using of any false or fraudulent ticket or knowingly tenders a false statement to a weighing machine keeper respecting the weight of any such vehicle or the loading thereof;
- (d) after the weighing of such vehicle with the loading of the same removes any part of such loading and afterwards disposes or attempts to dispose of the residue of such loading as being the full loading denoted by such ticket;
- (e) after the same and the loading thereof have been so weighed substitutes or attempts to substitute any vehicle with or without the loading thereof or to change the wheels thereof or places thereon lighter wheels or makes any alteration or does any other act to such vehicle before the same shall be brought back to the machine to be again weighed without the loading thereof;
- (f) when any such vehicle shall have been weighed with the loading thereof at any such machine as aforesaid if required refuses to bring back

the same without alteration to be again weighed at the same machine; or

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PART IV.
 —cont.

(g) is guilty of any other fraud or fraudulent contrivance touching the weight of any such vehicle or of the loading thereof;

shall be liable to a penalty not exceeding five pounds.

35. The purchaser of any goods or merchandise conveyed in any vehicle who shall after such vehicle with the loading thereof has been weighed at a weighing machine and before the same is brought back to be re-weighed without the loading thereof make any alteration in such vehicle whereby the same may become heavier shall be liable to a penalty not exceeding five pounds.

Penalty on purchaser committing fraud in weighing.

PART V.

SALE OF COKE &C.

36. The provisions of sections 20 to 29 inclusive of the Weights and Measures Act 1889 as amended by this Part of this Act and of any byelaws made by the Corporation thereunder (which provisions and byelaws relate to the sale of coal) shall also apply to the sale of coke within the borough.

Application to sale of coke of Weights and Measures Act 1889. 52 & 53 Vict. c. 21.

37. If any seller of coke or any person in charge of any vehicle from which coke is being sold or offered or exposed for sale wilfully makes any false statement as to the weight of the coke or wilfully increases such weight by damping such coke or wilfully does any other act by which the purchaser of the coke shall be defrauded such seller or person in charge shall be liable for every such offence on the first occasion to a penalty not exceeding five pounds and on the second or any subsequent occasion to a penalty not exceeding ten pounds.

Penalty on fraudulent sale.

38. Every vehicle carrying coal or coke for sale or for delivery on sale shall have the seller's name and place of business together with the words "coal merchant" or "coke merchant" as the case may require or words to the like effect clearly marked and visible on the front of such vehicle.

Requirements as to vehicles carrying coal or coke for sale or delivery on sale.

A.D. 1937.

PART V.

—cont.

Amendment of
section 27 of
Weights and
Measures Act
1889 in its
application to
borough.

As to sale of
coal or coke
otherwise
than in
sacks from
a vehicle.

39. Proviso (a) to section 27 of the Weights and Measures Act 1889 in its application to the borough shall be read and have effect as if in that proviso the words "one mile" were substituted for the words "half a mile."

40.—(1) Any person selling or intending to sell or exposing for sale coal or coke from or on a vehicle otherwise than in sacks and not carrying on such vehicle a weighing instrument of a type approved by the Corporation stamped by an inspector of weights and measures shall sell at one time only the whole load of such coal or coke on such vehicle and shall be furnished with a ticket or note stating the gross tare and nett weight of such load and shall produce such ticket or note to any inspector of weights and measures or other officer appointed for the purpose by the Corporation on demand.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds.

Application
of this Part
of Act.

41. The provisions of this Part of this Act relating to coke shall apply to any solid fuel derived from coal or of which coal or coke is a constituent as if it were coke.

Notice to be
given.

42.—(1) Public notice of the provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in a newspaper circulating in the borough.

(2) Copies of the newspaper containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with.

PART VI.

SUPERANNUATION.

Meaning of
expressions
in Part VI
of Act.

43. Words and expressions to which meanings are assigned by the Act of 1922 have in and for the purposes of this Part of this Act the same respective meanings unless there is something in the subject or context repugnant to such construction.

44.—(1) In the event of the salary or wages A.D. 1937.
of an officer or servant being either—

PART VI.

—cont.

- (a) reduced in consequence of a reduction of the duties which he has to perform and not on the ground of misconduct; or
- (b) reduced on account of his mental or physical infirmity; or
- (c) reduced or suspended by reason of illness;

Reduction
or suspen-
sion of
salary or
wages.

he may if he so desires with the consent of the Corporation either—

- (i) continue to contribute to the superannuation fund in all respects as if such reduction or suspension had not taken place; or
- (ii) pay into the superannuation fund forthwith on such reduction or suspension ceasing to have effect or on his resignation or on his otherwise ceasing to hold his office or employment whichever shall first occur (in this section referred to as “the material date”) or by such instalments as may be agreed between him and the Corporation a sum equal to the difference between the amount (if any) which he has contributed thereto during the period of such reduction or suspension and the amount which he would have contributed thereto if such reduction or suspension had not taken place together with compound interest on that sum calculated at the rate of four per centum per annum with half-yearly rests.

(2) In the event of any sum payable by an officer or servant under paragraph (ii) of subsection (1) of this section being agreed to be paid by instalments the first instalment shall be not less than one-tenth of the total sum payable and shall be payable within one year from the material date and the whole of the instalments shall be payable within a period not exceeding ten years from that date with compound interest on the amount for the time being unpaid calculated at the rate of four per centum per annum with half-yearly rests as from the material date.

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PART VI.
—cont.

(3) In the event of an officer or servant continuing to contribute or making such payment as aforesaid—

(a) in the former case the amount of his salary or wages shall for the purposes of the Act of 1922 be deemed to be the amount of the salary or wages which he would have received; and

(b) in the latter case the amount of his salary or wages for the period in respect of which he so continues to contribute shall for the purposes of the Act of 1922 be deemed to be the amount of the salary or wages which he would have received in respect of that period;

if such reduction or suspension had not taken place.

(4) For the purpose of calculating the amount which may be or is required to be paid by way of return of contributions to or in respect of an officer or servant under sections 9 10 11 12 and 17 of the Act of 1922 the whole of the sum paid by him under this section (or if the amount is payable by instalments under subsection (2) of this section the amount of the instalments paid by the officer or servant to the date of the determination of the appointment or his death as the case may be) shall be treated as contributions which have been paid by him to the superannuation fund of the Corporation.

(5) If any instalment of the sum payable by an officer or servant under this section remains to be paid at the date on which the officer or servant becomes entitled to a superannuation allowance the amount of each such instalment shall with accrued interest thereon be deducted from the payment or payments of superannuation allowance made next after the instalment has become due until the whole sum payable has been recovered.

As to proof
of continued
existence of
pensioners.

45. Notwithstanding anything contained in the Act of 1922 the Corporation shall not be required to make any payment by way of superannuation allowance under that Act to or for the benefit of any person unless satisfactory proof is given to the Corporation in such manner and at such times as they may from time to time require of the continued existence of such person.

46.—(1) Within one month before any date on which if he ceased to hold his office or employment an officer or servant would become entitled to a superannuation allowance under paragraph (b) or paragraph (c) of subsection (1) of section 6 of the Act of 1922 he may give notice in writing to the treasurer requiring that the provisions of subsection (2) or subsection (3) of this section shall apply to him and to any wife to whom he is married on the date on which he becomes entitled to a superannuation allowance or (if he dies before ceasing to hold office or employment but would had he so ceased immediately prior to his death have been entitled to a superannuation allowance) to any wife to whom he is married at the date of his death and where any such notice is given then unless the Corporation (being of opinion that the state of health of such person regard being had to his age is not reasonably satisfactory) notify him within one month after the receipt by the treasurer of the notice that they do not intend to comply with the requirement subsection (2) or subsection (3) of this section as the case may be shall apply and the other provisions of this section shall have effect:

A.D. 1937.

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PART VI.

—cont.

Annuities
for widows.

Provided that a notice under this subsection may be given in respect either of the whole or of a specified part of an allowance and where it is given in respect of a specified part only of an allowance references in this section to the superannuation allowance shall be construed as references to such specified part of the superannuation allowance.

(2) In any case to which this subsection applies—

- (a) the amount of the superannuation allowance payable to the officer or servant during the joint lives of himself and such wife as aforesaid shall in any case covered by Part I of the Second Schedule to this Act be such proportion of the superannuation allowance which would have been payable under the Act of 1922 if he had not given a notice under this section as is specified in that part of that schedule as appropriate in relation to the ages of such officer or servant and his wife at the date of his retirement and in any other case such proportion of the said superannuation allowance as is certified by an actuary to be just;

A.D. 1937.

PART VI.
—cont.

(b) if he predeceases her and—

(i) was in receipt of or entitled to a superannuation allowance; or

(ii) dies before ceasing to hold office or employment but would had he so ceased immediately prior to his death have been entitled to a superannuation allowance;

she shall be entitled after his death to receive for life an annuity equal to one-third of the amount of the superannuation allowance which was or would have been payable under paragraph (a) of this subsection during their joint lives;

(c) if she predeceases him then as from the date of her death or his retirement whichever occurs last the superannuation allowance payable to him shall be an amount equal to two-thirds of the amount which was or would have been payable under paragraph (a) of this subsection during their joint lives.

(3) In any case to which this subsection applies—

(a) the amount of the superannuation allowance payable to the officer or servant shall in any case covered by Part II of the Second Schedule to this Act be such proportion of the superannuation allowance which would have been payable under the Act of 1922 if he had not given a notice under this section as is specified in that part of that schedule as appropriate in relation to the ages of such officer or servant and his wife at the date of his retirement and in any other case such proportion of the said superannuation allowance as is certified by the actuary to be just;

(b) if he predeceases her and—

(i) was in receipt of or entitled to a superannuation allowance; or

(ii) dies before ceasing to hold office or employment but would had he so ceased immediately prior to his death have been entitled to a superannuation allowance;

[1 EDW. 8. &
1 GEO. 6.]

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[Ch. lix.]

she shall be entitled after his death to receive for life an annuity equal to one-third of the amount of the superannuation allowance which was or would have been payable to him under the Act of 1922 if he had not given a notice under this section.

A.D. 1937.

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PART VI.
—cont.

(4) The Minister may on application made by the Corporation by order alter as respects officers or servants giving notice under subsection (1) of this section after the date of the order any of the percentages specified in Parts I and II of the Second Schedule to this Act so far as may be necessary to secure that the benefits provided by this section for officers or servants and their wives shall be actuarially equivalent to the benefits to which the officers or servants would have been entitled if they had not given such notice as aforesaid.

(5) The first payment of any superannuation allowance to a person under this section shall be accompanied by a statement showing the amount of any annuity which may become payable under this section.

(6) An annuity under this section shall be payable out of the superannuation fund. Provided that if the superannuation allowance of the officer or servant was by reason of the proviso to subsection (1) of section 16 of the Act of 1922 not payable wholly out of the superannuation fund such proportion only of the annuity shall be paid out of the superannuation fund as corresponds to the portion of the said superannuation allowance which was so payable and the balance shall be charged to the accounts (forming part of the general rate fund) to which the salary or wages of the officer or servant to whom the allowance was granted are charged.

(7) If the officer shall die after becoming entitled to a superannuation allowance but before he would have been entitled to receive by way of superannuation allowance if he had not given notice under this section an amount in the aggregate equal to the amount of his contributions to the superannuation fund with compound interest thereon at three per centum per annum calculated by half-yearly rests the Corporation shall pay to his legal personal representative the difference between the amount which the officer would have been entitled to receive as aforesaid and the sum to which his contributions to such fund with such compound interest

A.D. 1937. thereon at the rate and calculated as aforesaid amounted at the date of his retirement.

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PART VI.
—cont.

(8) In any case to which subsection (7) of this section applies the Corporation shall not be required to make any payment to the legal personal representative of the deceased officer under the provisions of subsection (2) of section 12 of the Act of 1922.

(9) An annuity under this section shall not be capable of assignment or transfer.

As to super-
annuation of
registration,
officers.

19 & 20
Geo. 5. c. 17.

59 & 60 Vict.
c. 50.

47.—(1) Any person appointed as a registration officer at any time after the first day of June nineteen hundred and thirty-three who immediately before his appointment was subject by virtue of section 124 of the Local Government Act 1929 or of that section and section 122 of that Act or of those provisions as amended by any local Act (including the provisions of this section) to the Poor Law Officers' Superannuation Act 1896 as modified by or in pursuance of the Local Government Act 1929 or to the Act of 1922 as modified by the said Act of 1929 shall be deemed for the purposes of the said section 124 to be in the service of the Corporation as respects that appointment.

(2) Subject to the provisions of subsection (1) of this section any person appointed as a registration officer at any time after the first day of June nineteen hundred and thirty-three shall for the purposes of the Act of 1922 as respects that appointment be deemed to be in the service of the Corporation and occupying a post which was designated as an established post on the first day of June nineteen hundred and thirty-three.

(3) For the purposes of this section the expression "registration officer" means a superintendent registrar or a registrar of births and deaths (including a registrar exercising any of the functions of registrars of marriages) for a district or sub-district in relation to which registration functions are discharged by the Corporation.

Extension of
Act of 1922
to clerk to
justices and
others.

48.—(1) Subject to the provisions of this section the expressions "officer" and "servant" where used in the Act of 1922 in its application to the Corporation shall include the clerk to the justices of the borough

if he is in the whole-time service of the said justices as such clerk and any person employed by the clerk if he is in the whole-time permanent employment of the clerk in connection with his duties as such clerk and occupies a post designated by the justices as an established post.

A.D. 1937.

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PART VI.
—cont.

(2) The provisions of subsection (1) of this section shall not come into operation except with the consent of the said justices and of the Secretary of State and if such consents are given shall operate from the thirty-first day of December nineteen hundred and thirty-seven or from such later date as may be determined by order of the Secretary of State.

(3) The consent of the justices under subsection (2) of this section shall only be effective if given by resolution passed by the said justices or a majority of them assembled at special sessions summoned for the purpose.

(4) The Secretary of State may by order make such modifications in the Act of 1922 in its application to the Corporation as appear to him to be necessary or expedient for the purposes of this section.

(5) The Corporation shall within two months after the passing of this Act give notice in writing of the provisions of this section to the clerk to the said justices and to any person who at the time of the giving of such notice is in the whole-time permanent employment of the clerk in connection with his duties as such clerk and the provisions of subsection (1) of this section shall not apply to such clerk or person if within one month after the date of such notice he intimates in writing to the Corporation that he does not desire that the said provisions shall apply to him.

49.—(1) The Corporation may if they think fit in the case of any employee (including any temporary or supplementary teacher and any person whose salary or wages is or are paid by the Corporation) who has been employed by the Corporation or by any other local authority or by the Corporation and such other local authority for not less than ten consecutive years and who is not entitled to benefit under any Act for the time being in force relating to the superannuation of or making of gratuities or allowances to employees

Power to
grant allow-
ances or
gratuities in
certain
cases.

A.D. 1937.

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PART VI.
—cont.

or under the Workmen's Compensation Acts grant a weekly or other allowance not exceeding one-half of his salary or wages or in lieu thereof a gratuity of any sum not exceeding two years' pay to any such employee who may be disabled or injured in the Corporation's service or may become incapacitated through age sickness or other infirmity or to the widow or family of any such employee who may die in the Corporation's service.

(2) Every such allowance or gratuity shall be charged to the accounts (forming part of the general rate fund) to which the salary or wages of the employee to whom the allowance or gratuity is granted are charged.

(3) In and for the purposes of this section the expression "employee" shall include any teacher who is not entitled to a gratuity under the Teachers (Superannuation) Acts 1918 to 1935 or any Act amending the same and who at the date of the passing of this Act is or shall thereafter be permanently and exclusively employed by the Corporation as the local education authority for the borough or permanently and exclusively employed in any public elementary school in the borough whether provided by the Corporation as the local education authority or not so provided.

Power to
pension
employees.

50.—(1) The Corporation if they think fit may make or pay to any employee of the Corporation being a contributor to the superannuation fund who shall lose his office or employment by reason of a reduction of staff or the abolition of his office without becoming entitled to a superannuation allowance under the provisions of the Act of 1922 a retiring allowance of such amount (not exceeding (a) an annual sum equivalent to one-sixtieth of the average amount of his salary or wages during the five years which immediately preceded the day on which the employee ceased to hold his office or employment multiplied by the number of years of his service with the Corporation or (b) forty-sixtieths of such average amount whichever shall be the less) and on such terms and conditions as the Corporation may think fit but any employee to whom any such retiring allowance may be so made or paid shall thereupon relinquish any claim to any repayment of contributions or any other benefit from the superannuation fund:

Provided that where a person in receipt of a retiring allowance under the provisions of this section is appointed to any office or employment by the Corporation or by any authority where his salary or wages are paid directly or indirectly out of any rate or rates or out of any public moneys such allowance shall cease to be paid so long as he continues to hold such office or employment if the salary or wages thereof are equal to or in excess of the amount of such allowance and if such salary or wages are less than the amount of such allowance then only so much of such allowance shall be paid (so long as he holds such office or employment) as will make up the deficiency and that any such person on ceasing to hold such office or employment shall be entitled to revert to and to receive the full amount of his original retiring allowance.

A.D. 1937.

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PART VI.
—cont.

(2) The Corporation if they think fit may on such terms and conditions as they may determine add to or increase any superannuation allowance to be received out of the superannuation fund by a contributor who shall have retired or ceased to hold office Provided that no superannuation allowance as added to or increased under the powers of this subsection shall exceed an allowance at the rate of one pound per week.

(3) Any retiring allowance or addition to or increase of superannuation allowance made or paid by the Corporation under the provisions of this section shall be made or paid out of the fund rate revenue or account out of which the salary or wages of such employee was or were paid at the date of his retirement.

51.—(1) On the death of an employee to whom a sum not exceeding one hundred pounds is due on account of salary wages superannuation allowance grant or repayment of contributions to any superannuation or other fund with or without interest if probate of the will of the employee or letters of administration of his estate are not produced within such time (not being less than one month after his death) as the Corporation may think reasonable then at the expiration of that time the Corporation may pay the sum to the person or persons entitled in distribution

As to payments due to deceased employees.

A.D. 1937.

PART VI.

—cont.

15 & 16

Geo. 5. c. 23.

16 & 17

Geo. 5. c. 60.

to the residuary estate of the employee in accordance with the provisions of paragraphs (i) to (v) inclusive of section 46 (1) of the Administration of Estates Act 1925 and section 9 of the Legitimacy Act 1926 and in default of any such person to the Solicitor for the Affairs of His Majesty's Treasury Provided that—

(a) the Corporation may if they think fit pay to any person who has paid the funeral expenses of the deceased employee such amount (not exceeding the total amount of such expenses) as the Corporation shall deem it reasonable to allow;

(b) if the Corporation receive notice in writing of any claim of a creditor of the deceased employee before the expiration of one month from the death of the employee they shall retain the whole amount due to the deceased employee in their hands or a sufficient sum thereof to satisfy the claim (whichever amount shall be the less) until the claim has been satisfied disproved or withdrawn.

(2) The Corporation before paying or distributing any moneys under this section to or among any person or persons other than the legal personal representative of the deceased employee shall require—

(a) where the total estate of the deceased employee including the amount of such moneys does not after deduction of debts and funeral expenses exceed one hundred pounds a declaration to that effect by the person or one of the persons to or among whom the Corporation propose to pay or distribute such moneys; and

(b) where the total estate of the deceased employee including the amount of such moneys but after deduction of debts and funeral expenses exceeds one hundred pounds the production of a certificate from the Commissioners of Inland Revenue of the payment of the estate duty and of a duly stamped receipt for the legacy or succession duty payable in respect of such moneys or of a certificate stating that no legacy or succession duty is payable.

[1 EDW. 8. &
1 GEO. 6.]

Warrington Corporation
Act, 1937.

[Ch. lix.]

52.—(1) When making any joint appointment of two or more officers the Corporation shall determine the salary to be paid to each of such officers.

A.D. 1937.

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PART VI.
—cont.

(2) In regard to a joint appointment already made of two or more officers to whom a combined salary is paid the Corporation may determine the apportionment of such salary between such officers and the amount apportioned to each such officer shall be deemed to be his salary for the purposes of the Act of 1922 and this Part of this Act.

Joint ap-
pointments.

(3) If the holder of a joint appointment—

(a) loses his office or employment by reason of the death removal retirement resignation or incapacity of another holder of office; and

(b) has either attained the age of fifty years or has completed aggregate service of not less than twenty years;

he shall unless he is re-appointed to the same office or employment or is appointed to a similar office or employment at not less salary be entitled to receive a superannuation allowance under the Act of 1922 :

Provided that this subsection shall not apply when the joint appointment is of husband and wife and is determined in consequence of an offence of one of them of a fraudulent character or grave misconduct.

(4) Nothing in this section shall prejudicially affect any right or interest in respect of a superannuation allowance which the holder of a joint appointment may have under the Poor Law Officers' Superannuation Act 1896 or under subsection (1) or subsection (2) of section 124 of the Local Government Act 1929.

(5) In this section—

“ officer ” includes servant; and

“ joint appointment ” includes any office or employment the tenure whereof is determined by the death removal retirement resignation or incapacity of another person in the service of the Corporation.

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PART VII.

FINANCIAL PROVISIONS.

Power to
borrow.

53.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority the sum or sums requisite for the payment of the costs charges and expenses of this Act and they shall pay off all moneys so borrowed within such period as the Corporation may determine not exceeding five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

Application
of Act of
1933 to
existing
sinking
funds.

54. Sections 213 and 214 of the Act of 1933 shall apply with respect to any sinking fund formed by the Corporation for the repayment of any money borrowed (otherwise than by the issue of stock) before the passing of this Act under any statutory borrowing power as if it had been borrowed by way of mortgage and the Corporation shall make such adjustments of any existing sinking funds as may be proper.

Consoli-
dated loans
fund.

55.—(1) Notwithstanding anything contained in any other Act or Order on and after the thirty-first day of March nineteen hundred and thirty-eight the Corporation may (if they think fit) establish a fund to be called “the consolidated loans fund” to which shall be paid—

- (a) all moneys borrowed by the Corporation by the issue of authorised securities together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied

by the Corporation with due authority to A.D. 1937.
another capital purpose; and

- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt:

PART VII.
—cont.

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the redemption of authorised securities the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Corporation; and
(b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation:

And the moneys of the consolidated loans fund not used or applied in these ways or about to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided in this subsection.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet interest charges and the financing and other revenue expenses connected with the management of that fund and separate account shall be kept of these sums and their application.

(4) The Corporation may pay into the consolidated loans fund any moneys forming part of any reserve renewals repairs depreciation contingent accident insurance superannuation or other similar fund (hereinafter referred to as "the lending fund") and not for

A.D. 1937.

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PART VII.
—cont.

the time being required and such moneys shall be deemed to be moneys borrowed by the Corporation within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions :—

(a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established; and

(b) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the average rate of interest payable by the Corporation on their current borrowings.

(5) Save as in this section expressly provided all the obligations of the Corporation to the holders of authorised securities shall continue in force.

(6) Nothing in this section shall apply to moneys borrowed from the Public Works Loan Commissioners.

(7) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

(8) Any such scheme as is referred to in the last preceding subsection of this section may be altered amended or revoked by a further scheme made in like manner as the original scheme.

Closing of
transfer
books.

56.—(1) The Corporation may close any transfer books or the registers of transfers of authorised securities (other than stock) during the whole of the period of thirty days or any shorter consecutive period next before the date on which any instalment of interest on such authorised securities is payable.

(2) The persons who on such closing day are entered in any book or register as holders of any securities of the class of which the book or register is so closed shall as between them and the transferees of those securities be entitled to the interest next payable thereon.

57.—(1) The Corporation may give notice to any person being registered as a holder of any authorised security other than stock that they intend to send interest or dividends to him by post if he does not object and if such person does not within fourteen days from the receipt of such notice give notice to the Corporation of such objection the Corporation may from time to time send letters containing orders for the payment of interest or dividend warrants to the address of such person appearing in the register. Provided that if such person give notice to the Corporation that he desires such orders or warrants to be sent to another person at a given address the Corporation may from time to time send letters containing the same to such other person at such address.

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PART VII.

—cont.

Dividend
warrants
by post.

(2) Where more persons than one are registered as joint holders of any authorised security any one of them may for the purpose of this section be regarded as the holder of the security unless contrary notice has been given to the Corporation by any other of them.

(3) The posting by the Corporation of a letter containing an order for the payment of interest or a dividend warrant in pursuance of this section shall as respects the liability of the Corporation be equivalent to the delivery of the order or warrant to the registered holder of the authorised security.

(4) Every order or warrant so sent by post shall be deemed to be a cheque and the Corporation shall in relation thereto be deemed a banker within the Bills of Exchange Act 1882.

45 & 46 Vict.
c. 61.

58. The sections of this Act of which the marginal notes are—

- “ Receipts and expenses ”;
- “ Accounts ”;
- “ Application of revenue of undertakings ”;
- “ Provisions as to surplus electricity revenue ”; and
- “ As to surplus on gas revenue ”;

As to operation of certain provisions of this Part of Act.

shall be deemed to have come into operation on the first day of April nineteen hundred and thirty-seven.

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PART VII.
—cont.Receipts
and
expenses.

59.—(1) Notwithstanding anything contained in any previous enactment all money received by the Corporation whether on capital or revenue account including (but without prejudice to the generality of this provision)—

(a) all money received by the Corporation on account of the revenue of any of the Corporation undertakings; and

(b) interest and other annual proceeds from time to time received by the Corporation on the investments or balances forming part of any fund accumulated for the redemption of debt or as a reserve renewals repairs depreciation contingency accident insurance consolidated loans capital or other similar fund (including any interest payable to any such fund in pursuance of section 42 (Use of moneys forming part of sinking and other funds) of the Act of 1929 or the section of this Act of which the marginal note is "Consolidated loans fund";

shall be carried to and form part of the general rate fund and all payments and expenses made and incurred by the Corporation in respect of any such undertaking or in carrying into execution the powers and provisions of this or any other Act whether public or local (including interest on moneys borrowed by the Corporation and all sums required by law to be paid or transferred or which the Corporation may determine to pay apply or transfer to any such fund as is referred to in paragraph (b) of this subsection) shall be paid or transferred out of the general rate fund:

Provided that an amount equivalent to the interest and other annual proceeds as aforesaid shall (subject in the case of any such fund as aforesaid to any prescribed limit on the amount thereof) be credited in the accounts to the fund on the investments of which the same is received.

(2) Nothing in this section shall authorise the Corporation to apply capital money to any purpose other than a purpose to which capital money is properly applicable.

[1 EDW. 8. &
1 GEO. 6.]

Warrington Corporation
Act, 1937.

[Ch. lix.]

60.—(1) The Corporation shall keep their accounts so as to distinguish capital from revenue and shall keep separate accounts in respect of each of the Corporation undertakings and as to revenue shall show under a separate heading or division on the one side all receipts in respect of the undertaking (including the income from any such fund as is referred to in paragraph (b) of subsection (1) of the last preceding section of this Act provided in connection with the undertaking) and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show the amounts representing—

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PART VII.

—cont.

Accounts.

- (a) the working and establishment expenses and cost of maintenance of the undertaking;
- (b) the annuities (if any) payable in respect of the undertaking;
- (c) the interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;
- (d) the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of or connected with the undertaking;
- (e) all other expenses (if any) of the undertaking properly chargeable to revenue;
- (f) any money expended or applied for any of the purposes mentioned in subsection (1) of the next succeeding section of this Act.

(2) The Corporation shall show in their accounts relating to each undertaking all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking.

(3) The Corporation shall so far as reasonably practicable apportion between the accounts of separate undertakings or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

61.—(1) If in respect of any year the moneys received by the Corporation on account of the revenue of any of the Corporation undertakings (including the interest and other annual proceeds received by the

Application
of revenue
of under-
takings.

A.D. 1937,

PART VII.
—cont.

Corporation in that year on the investments representing or forming part of any such fund as is referred to in paragraph (b) of subsection (1) of the section of this Act of which the marginal note is "Receipts and expenses" provided in connection with the undertaking) shall exceed the moneys expended or applied by the Corporation in respect of that undertaking for the several purposes mentioned in paragraphs (a) (b) (c) (d) and (e) of subsection (1) of the last preceding section of this Act the Corporation may in respect of that year (if they think fit) apply out of the general rate fund a sum not exceeding the amount of such excess to any of the following purposes:—

- (a) In the reduction of capital moneys borrowed for the purposes of the undertaking;
- (b) In the renewal and (subject in the case of the electricity undertaking to the consent of the Electricity Commissioners as respects expenditure chargeable to capital account) the construction extension or improvement of any works and conveniences for the purposes of the undertaking;
- (c) In providing a reserve fund in connection with the undertaking by setting aside such an amount as they may from time to time think reasonable and (unless applied in any other manner authorised by the Act of 1929 or this Act) investing the same in statutory securities until the reserve fund so provided amounts in the case of the electricity undertaking to a sum equal to one-tenth of the aggregate capital expenditure of the Corporation on that undertaking and in the case of any other undertaking to the maximum reserve for the time being prescribed by the Corporation but not exceeding in the case of the gas undertaking and the water undertaking respectively a sum equal to one-tenth of the aggregate capital expenditure of the Corporation upon those undertakings respectively and in the case of the transport undertaking a sum equal to one-fifth of the aggregate capital expenditure on that undertaking.

(2) Any reserve or renewals or contingency or depreciation fund which has been formed for the purposes of any of the Corporation undertakings and which is in existence on the first day of April nineteen hundred and thirty-seven shall be carried to and form part of any reserve fund provided under this section in connection with that undertaking.

A.D. 1937.

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PART VII.
—cont.

(3) The Corporation shall in every year so long as any reserve fund provided under this section is less than the maximum prescribed by or under this section transfer to that reserve fund out of the general rate fund an amount equal to the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the reserve fund and carried to the general rate fund.

(4) Any reserve fund provided under this section may be applied in making good to the general rate fund any deficiency at any time happening in the income of the Corporation from the undertaking in connection with which it is formed or in meeting any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking or (subject in the case of the electricity undertaking to the consent of the Electricity Commissioners as respects expenditure chargeable to capital account) in or towards the payment of the cost of renewing improving or extending any works forming part thereof or otherwise for the benefit of that undertaking and so that if that reserve fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(5) Resort may be had to a reserve fund provided under the foregoing provisions of this section although such reserve fund may not at the time have reached or may have been reduced below the prescribed maximum.

62.—(1) In lieu of the provisions of subsection (1) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899 and of the amendments to that subsection set out in the Fifth Schedule to the Electricity (Supply) Act 1926 the following provisions shall apply with respect to the electricity undertaking (in addition

Provisions
as to surplus
electricity
revenue.
16 & 17
Geo. 5. c. 51.

A.D. 1937. to the provisions of the section of this Act of which the
— marginal note is "Application of revenue of under-
PART VII. takings") (namely):—
—cont.

If in any year the moneys received by the Corporation on account of the revenue of the undertaking (including the interest and annual proceeds received by the Corporation in that year on the investments representing or forming part of any such fund as is referred to in paragraph (b) of subsection (1) of the section of this Act of which the marginal note is "Receipts and expenses" and as is provided in connection with the undertaking) shall exceed the aggregate of the moneys paid or expended by the Corporation in respect of the undertaking for the several purposes mentioned in paragraphs (a) to (f) of subsection (1) of the section of this Act of which the marginal note is "Accounts" (the amount of such excess of revenue moneys being in this section referred to as "the excess") then—

(a) if the reserve fund in respect of the undertaking does not amount to more than one-twentieth of the aggregate capital expended for the time being upon the undertaking a sum equal to the excess shall for the purpose of the section of this Act of which the marginal note is "Accounts" be credited to the revenue account of the undertaking for the next following year and the charges for electricity supplied by the Corporation shall be reduced by such amount or respective amounts as will as nearly as reasonably practicable be equivalent in the aggregate to the excess;

(b) if the said reserve fund amounts to more than one-twentieth of the said aggregate capital such amount as the Corporation may think fit (not being less in cases where the excess is more than a sum equal to one and a half per centum of the outstanding debt of the undertaking than the difference between the excess and that sum) shall for the purpose of the section

[1 EDW. 8. &
1 GEO. 6.]

Warrington Corporation
Act, 1937.

[Ch. lix.]

of this Act of which the marginal note is "Accounts" be credited to the revenue account of the undertaking for the next following year and the charges for electricity supplied by the Corporation shall be reduced by such amount or respective amounts as will as nearly as reasonably practicable be equivalent in the aggregate to the amount so credited.

A.D. 1937.

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PART VII.
—cont.

(2) Subsection (1) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be deemed to have ceased to be incorporated with any of the Acts or Orders relating to the electricity undertaking.

63. Notwithstanding anything contained in any previous enactment the following provisions shall apply with respect to the gas undertaking (in addition to the provisions of the section of this Act of which the marginal note is "Application of revenue of undertakings") (namely):—

As to surplus on gas revenue.

If in any year the accounts of the undertaking kept under the section of this Act of which the marginal note is "Accounts" shall show that the revenue of the undertaking in respect of that year (including if and so long as any reserve fund provided in connection with the undertaking amounts to a sum equal to one-tenth part of the aggregate capital expended for the time being upon the undertaking the interest and other annual proceeds arising from the investment of any part of that reserve fund) has exceeded the total amount of the payments and expenses in respect of the year for the several purposes in relation to the undertaking which are mentioned in paragraphs (a) to (f) of subsection (1) of the section of this Act of which the marginal note is "Accounts" such sum as the Corporation may think fit (not being less in cases where such excess is more than a sum equal to one per centum of the total capital expenditure on the undertaking than the difference between such excess and such last-mentioned sum) shall for the purpose of the said section

A.D. 1937.

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PART VII.
—cont.

of this Act of which the marginal note is "Accounts" be credited to the revenue account of the undertaking in respect of the next following year and a reduction shall be made in the charges for gas supplied by the Corporation of such respective amounts as will as nearly as reasonably practicable be equivalent in the aggregate to the sum so credited to the revenue account of the undertaking :

Provided that if there is any increase in the estimated amount to be paid expended or set aside in the said next following year for the several purposes in relation to the undertaking which are mentioned in paragraphs (a) to (e) of subsection (1) of the section of this Act of which the marginal note is "Accounts" or any reduction in the estimated revenue of the undertaking for that year the sum to be so credited to the revenue account of the undertaking shall be reduced by the amount of such increase in the estimated amount to be paid expended and set aside or by the amount of such reduction in the estimated revenue or by both of those amounts (as the case may require).

Capital
reserve
fund.

64.—(1) The Corporation may establish a fund to be called "the capital reserve fund" for the purpose of defraying any expenditure to which capital is properly applicable (other than expenditure in connection with the water undertaking the gas undertaking the electricity undertaking and the transport undertaking or any undertaking in respect of which the Corporation have for the time being provided a reserve fund under the section of this Act of which the marginal note is "Application of revenue of undertakings" and expenditure to which the section of this Act of which the marginal note is "Art fund" applies) to an amount not exceeding five thousand pounds in any one transaction and such fund shall be formed by appropriating in the accounts of the Corporation such sums out of the general rate fund as the Corporation from time to time deem expedient :

Provided that—

(a) any sum so appropriated to the capital reserve fund from the general rate fund

shall not exceed in any year the equivalent of a rate of threepence in the pound calculated according to the rules made from time to time by the Minister under sections 9 and 58 of the Rating and Valuation Act 1925;

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PART VII.
—cont.
15 & 16
Geo. 5. c. 90.

(b) appropriations to and payments into the capital reserve fund shall cease to be made whenever the said fund amounts to the sum of fifty thousand pounds.

(2) (a) Pending the application of the capital reserve fund to the purposes authorised in the foregoing subsection the moneys in the fund shall (unless applied in any other manner authorised by the Act of 1929 or this Act) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the capital reserve fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (1) of this section) an amount equivalent to such income shall be credited to the capital reserve fund.

65.—(1) The Corporation may (if they think fit) establish a fund to be called “the insurance fund” with the view of providing a sum of money which shall be available for making good all losses damages costs and expenses to which the Corporation may be subjected in consequence of the whole or any part of all or any of the following risks (that is to say):—

Insurance fund.

(a) Risk of fire in respect of buildings works premises and the contents thereof and other property whether belonging or on loan to or under the care custody or control of the Corporation;

(b) Risk of accident and claims by third parties in respect of any vehicles whether belonging to or hired by or under the control of the Corporation and whether drawn or propelled by man or horse or mechanical or other means or power;

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PART VII.

—cont.

43 & 44 Vict.
c. 42.15 & 16
Geo. 5. c. 84.

- (c) Risk of explosion in respect of boilers;
- (d) Risks under the common law the Employers' Liability Act 1880 the Workmen's Compensation Act 1925 or any Act or Acts for the time being amending or extending those Acts or otherwise in respect of accidents to the officers servants or workmen of the Corporation or to third parties;
- (e) Risks of injuries to school children through accident caused by the negligence of a teacher attendant or other person or defect in any school premises of or leased to the Corporation;
- (f) Risks of mechanical or electrical breakdown at or in connection with any of the works of the Corporation;
- (g) Risks of loss due to infidelity of officers or servants of the Corporation;
- (h) Any other risks against which in the absence of such an insurance fund the Corporation would ordinarily insure.

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices of good repute against the whole or any part of all or any of the several risks for which the insurance fund is intended to provide.

(3) In every year after the establishment of the insurance fund the Corporation shall pay into that fund either—

- (a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Corporation fully insured in some insurance office of good repute against the several risks for which the insurance fund is intended to provide; or
- (b) if the Corporation insure in some insurance office of good repute against the whole or any part of all or any of the several risks for which the insurance fund is intended to provide such sum as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to one hundred thousand pounds the Corporation may if they think fit discontinue the yearly payments to the fund but if the fund is at any time reduced below one hundred thousand pounds the Corporation shall recommence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the sum of one hundred thousand pounds.

A.D. 1937.

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PART VII.
—cont.

(5) The Corporation shall provide the yearly payments aforesaid by contributions from the general rate fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking or department of the Corporation which if the risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in consequence of risks for which the fund is intended to provide all moneys for the time being standing to the credit of the fund shall (unless applied in any manner authorised by the Act of 1929 or this Act) be invested in statutory securities.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Corporation shall in every year so long as the fund is less than one hundred thousand pounds pay into that fund out of the general rate fund an amount equal to the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the insurance fund and carried to the general rate fund.

(c) If and so long as the insurance fund amounts to one hundred thousand pounds an amount equal to the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the insurance fund and carried to the general rate fund shall either be credited to the insurance fund or be apportioned in the accounts of the Corporation between the several undertakings departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

A.D. 1937.

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PART VII.
—cont.

(7) For the purposes of this section the Corporation may if they deem it expedient include in the risks provided for under paragraph (d) of subsection (1) of this section risks of accident to any teacher or other person employed in any public elementary school maintained by the Corporation notwithstanding that such school has not been provided by the Corporation as the local education authority.

(8) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Corporation in consequence of risks for which it is intended to provide in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Corporation may with the sanction of the Minister borrow at interest such sums of money as will be necessary to make up the deficiency. The amounts of the annual charges in respect of interest on and repayment of principal of any sums so borrowed and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings departments or services of the Corporation and in such proportions as the Minister may direct having regard to the risks through which such deficiencies arise.

Renewal
and repairs
funds.

66.—(1) The Corporation may if they think fit establish a fund or funds for the purpose of defraying the expenditure to be incurred from time to time in repairing maintaining and renewing any buildings works plant appliances or things the cost of repairing maintaining and renewing which is payable out of the general rate fund and may from time to time apply any fund so established or any part thereof in defraying such expenditure but this section shall not apply to any buildings works plant appliances or things used for the purposes of the gas water electricity or transport undertakings or any undertaking in respect of which the Corporation have for the time being provided a reserve fund under the provisions of the section of this Act of which the marginal note is "Application of revenue of undertakings" nor to buildings in respect

of which the Corporation are required by the Housing Acts to keep a housing repairs account. A.D. 1937.

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PART VII.
—cont.

(2) The Corporation may from time to time pay out of the general rate fund such sums as they think fit into a fund or funds to be established under this section. Provided that the total of such sums which may be carried to any such fund or funds in any one financial year shall not exceed the amount (calculated in accordance with the rules made from time to time by the Minister under sections 9 and 58 of the Rating and Valuation Act 1925) which would be produced by a rate of twopence in the pound levied in that year in the borough and the amount standing to the credit of such fund or funds shall not at any time exceed twenty thousand pounds.

(3) The existing renewal and repairs fund of the Corporation shall be deemed to have been formed under this section and any moneys standing to the credit of that existing fund at the date of this Act shall be carried to and form part of the fund authorised by this section.

(4) Pending the application of any fund or funds established under this section to the purposes thereof the moneys in the fund or funds shall be either invested in statutory securities or used in the manner provided by section 42 (Use of moneys forming part of sinking and other funds) of the Act of 1929 or by the section of this Act of which the marginal note is "Consolidated loans fund."

67.—(1) The Corporation may if they think fit establish a fund to be called "the art fund" (such fund to be included in and form part of the general rate fund) to provide for the purchasing of any pictures sculptures or other objects of art or interest which in their opinion it is desirable at any time to acquire for exhibition in and as additions to the collection in the Corporation's art gallery and museum and such fund shall be formed by annually appropriating thereto out of the general rate fund such an amount as the Corporation may from time to time determine not exceeding in any financial year the amount (calculated in accordance with the rules made from time to time by the Minister under Art fund.

A.D. 1937.
—
PART VII.
—cont.

sections 9 and 58 of the Rating and Valuation Act 1925) which would be produced by a rate of one-fifth of a penny in the pound levied in that year in the borough :

Provided that when the fund aforesaid shall amount to five thousand pounds the Corporation shall discontinue such annual payments but if the fund is at any time reduced below the sum of five thousand pounds the Corporation may recommence and continue the annual payment until the fund be restored to the sum of five thousand pounds.

(2) Pending the application of the art fund to the purposes authorised by this section the moneys in the fund shall be either invested in statutory securities or used in the manner provided by section 42 (Use of moneys forming part of sinking and other funds) of the Act of 1929 or by the section of this Act of which the marginal note is " Consolidated loans fund."

PART VIII.

MISCELLANEOUS PROVISIONS.

Power to
provide &c.
entertain-
ments.

68.—(1) The Corporation may use or allow to be used or let any public buildings halls pavilions or other buildings or rooms belonging to them for concerts and other entertainments and may themselves provide or arrange for the provision of or contribute towards the expenses of any such concerts or entertainments and may make or allow to be made such charges as they think fit in connection therewith :

Provided that—

- (a) the Corporation shall not themselves use any such premises for a cinematograph theatre except for the exhibition of a cinematograph film relating to the functions of county councils or other local authorities nor shall they grant or let the use of any such buildings for the purposes of a theatre music hall or cinematograph theatre except on the best terms that can be obtained;
- (b) the power of the Corporation themselves to provide entertainments shall include a power to provide concerts and pierrot or other entertainments whether costume

is or is not used in connection therewith and either with or without appropriate scenery but save as aforesaid the Corporation shall not provide or arrange for the provision of stage plays performed by persons other than members of any amateur dramatic society or any entertainment for which scenery or theatrical costume is used and which forms a complete programme of variety entertainments as usually given at a music hall;

A.D. 1937.

—
PART VIII.
—cont.

- (c) the net amount of the expenses incurred by the Corporation under this section when added to the net amount of the expenses incurred by them in the provision of entertainments under section 56 of the Public Health Act 1925 shall not in any one year exceed the amount (calculated in accordance with the rules made from time to time by the Minister under sections 9 and 58 of the Rating and Valuation Act 1925) which would be produced by a rate of one penny and a third in the pound :

15 & 16
Geo. 5. c. 71.

Provided that the limitation hereby imposed shall not apply in respect of any excess rate which may be approved by the Minister under the provisions of subsection (3) of section 56 of the Public Health Act 1925.

(2) The Corporation may provide and sell or authorise the provision and sale of programmes of any concert or entertainments given in pursuance of this section.

(3) The Corporation may make byelaws for securing good and orderly conduct during any concerts or entertainments given in pursuance of this section.

(4) Nothing in this section shall be taken to dispense with the consent of the Board of Education to any appropriation lease or other disposition of any lands of the Corporation in any case in which such consent would have been required if this section had not been passed.

A.D. 1937.

—
PART VIII.
—cont.

(5) Nothing in this section shall affect the provisions of any enactment by virtue of which a licence is required for the public performance of stage plays or for public music or dancing or any public contest or display of boxing or wrestling or other public entertainment of the like kind or a cinematograph exhibition.

(6) No power conferred upon the Corporation by this section shall be exercised in such a manner as to be at variance with any trust subject to which any buildings halls or rooms are held managed or controlled by the Corporation without an Order of the High Court or of the Charity Commissioners or the Board of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of such donor or other person.

Extension of
section 2 (3)
of Public
Health (In-
terments)
Act 1879.
42 & 43 Vict.
c. 31.

69.—(1) Subsection (3) of section 2 of the Public Health (Interments) Act 1879 shall be extended to enable the Corporation to accept a capital sum for the purpose of maintaining a particular grave or grave space or monument either in a cemetery provided under the Public Health Acts or in a burial ground provided under the Burial Acts 1852 to 1906.

(2) Any such sum shall be invested in statutory securities or in manner authorised by section 42 (Use of moneys forming part of sinking and other funds) of the Act of 1929 or by the section of this Act of which the marginal note is "Consolidated loans fund" and the interest thereof applied in maintaining the grave or grave space or monument in such manner as the Corporation think fit.

(3) Any such capital sum and the interest thereof shall be shown separately in the accounts of the Corporation relating to their cemetery undertaking but otherwise the said interest shall be paid into the fund to which receipts derived from the cemetery undertaking are paid.

Power to
develop
lands &c.

70.—(1) The Corporation may (with the consent of the Minister) lay out and develop any lands at any time belonging to the Corporation and not required for the purposes for which they were acquired and may erect and maintain houses shops offices warehouses and any other buildings and construct sewer drain pave

flag channel and kerb streets roads and ways on any such lands. A.D. 1937.

(2) The Corporation may use or dispose of the building or other materials of any houses or premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

PART VIII.
—cont.

71. If the Corporation commence proceedings for the summary recovery of a sum due to them for the supply of gas any other payment due to the Corporation by the same consumer for the sale hire connection repair or maintenance of meters pipes fittings apparatus and appliances for lighting heating or motive power may be included in the same summons and may be recovered summarily as a civil debt provided the amount due in respect thereof does not exceed twenty pounds.

As to
charges for
gas fittings
&c.

72. The provisions of section 59 of the Rating and Valuation Act 1925 relating to the sending or service of demand notes shall apply to demand notes for any charges made in connection with any undertaking department or service of the Corporation.

Service of
demand
notes.

73. If a justice is satisfied on complaint by any officer of the Corporation duly authorised that any person is quitting or about to quit any premises in the borough and has failed to pay on demand any general rate or any gas water or electricity rate or charge which may be due from him and intends to evade payment of the same by departing from the borough the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the said officer to seize forthwith and detain the goods and chattels of such person until the complaint is determined upon the return of the summons.

Recovery of
rate &c.
from persons
removing.

74. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the borough any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Several
sums in one
summons.

75. As respects byelaws made under this Act the confirming authority for the purposes of section 250 of the Act of 1933 shall be (a) in the case of byelaws

As to
byelaws.

A.D. 1937. made under the section of this Act of which the marginal
— note is "Byelaws as to apparatus and fittings" the
PART VIII. Electricity Commissioners (b) in the case of byelaws
—cont. made under the section of this Act of which the
marginal note is "Byelaws as to form of weigh tickets" the Board of Trade and (c) in all other cases the Minister :

Provided that in the case of byelaws made under the section of this Act of which the marginal note is "Byelaws as to apparatus and fittings" the Electricity Commissioners may give directions that the notice referred to in subsection (3) of the said section 250 shall also be given in one or more newspapers circulating outside the area to which the byelaws apply.

Consents of
Corporation
to be in
writing.

76. All consents given by the Corporation under the provisions of this Act or of any local Act Order byelaw or regulation for the time being in force within the borough shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

Breach of
conditions
of consent of
Corporation.

77. Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Apportion-
ment of ex-
penses in
case of joint
owners.

78. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

[1 EDW. 8. & *Warrington Corporation* [Ch. lix.]
1 GEO. 6.] *Act, 1937.*

79. Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under the provisions of this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may except where otherwise expressly provided appeal to such a court.

A.D. 1937.

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PART VIII.
—cont.

As to
appeals.

80. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Act and section 290 of the Act of 1933 shall apply accordingly.

Inquiries by
Minister.

81.—(1) The Minister of Transport may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Act.

Inquiries by
Minister of
Transport.

(2) Section 290 of the Act of 1933 shall apply to any inquiry which the Minister of Transport causes to be held under this section or any other provisions of this Act.

82. The Corporation shall in every year within three months after the close of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of the transport undertaking.

Accounts to
be furnished
to Minister
of Trans-
port.

83. The following provisions of the Act of 1911 shall extend and apply to and for the purposes of this Act as if those provisions were with all necessary modifications re-enacted in this Act (namely):—

Application
of certain
provisions of
Act of 1911.

The Act of 1911—

Section 76 (Recovery of demands in county court);

Section 77 (Recovery of penalties &c.);

Section 81 (Persons acting in execution of Act not to be personally liable);

Section 86 (Powers of Act cumulative);

Section 87 (Saving of indictments);

Section 88 (Judges not disqualified).

A.D. 1937.

PART VIII.
—cont.

Repeal.

40 & 41 Vict.
c. xxxiii.

84.—(1) The following enactments are hereby repealed as from the first day of April nineteen hundred and thirty-seven :—

The Act of 1854—

Section XXX (Application of tolls).

The Warrington Corporation Gas Act 1877—

Section 43 (Application by Corporation of gas revenue).

The Warrington Extension and Water Act 1890—

Section 78 (Keeping of accounts);

Section 79 (Provision in case of deficiency of water revenue).

The Warrington Order 1896—

Article IV.

The Act of 1929—

Section 51 (As to water reserve fund).

(2) The following enactments are hereby repealed as from the date of this Act :—

The Warrington and Northwich Light Railways Order 1903—

Section 115 (Returns and accounts).

The Act of 1911—

Section 28 (Power to lay electric mains in streets not dedicated to public use).

Costs of Act.

85. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1937.

THE FIRST SCHEDULE.

STALLAGES AND TOLLS AUTHORISED TO BE TAKEN IN RESPECT OF THE MARKETS AND FAIRS AND SLAUGHTER- HOUSES.

I.—STALLAGES TO BE TAKEN AT MARKETS AND FAIRS.

	s.	d.
From every person occupying any stall shop stand standing place or defined space not specifically let on a tenancy for every superficial square yard or fractional part of a superficial square yard per day or part of a day - - - - -	1	6
From every person selling any goods or commodities by auction or by any mode of sale in the nature of an auction or public bidding in addition to the stallage hereinbefore authorised in respect of the occupation of any stall shop stand standing place or defined space for every hour or part of an hour	3	0
From every person occupying any space for the purpose of any public exhibition amusement or recreation for every superficial square yard or fractional part of a superficial square yard per day or part of a day	0	2

II.—TOLLS TO BE TAKEN AT MARKETS AND FAIRS.

From every person exposing butter for sale in baskets or extra packages or by hand not occupying a defined space except the benches provided for that purpose for every 12 lbs. weight - - - - -	0	2
From every person exposing for sale in like manner as last aforesaid any live or dead poultry chickens ducks wild fowl or rabbits for every couple - - -	0	2
From every person exposing for sale any vegetable produce or other matter or thing in a sack not being in such stall shop stand or standing place nor occupying a defined space then for every such sack not exceeding the size known as a hundredweight sack - - - - -	0	3
And for every larger sack - - - - -	0	6

A.D. 1937.

s. d.

—
1st Sch.
—cont.

From every person exposing for sale any goods commodities or things whatsoever except as hereinbefore mentioned in any basket hamper crate box tub hand barrow or other receptacle not occupying a defined space for every such receptacle not exceeding 2 feet in measurement one way - -	0	3
And for every such receptacle exceeding the dimensions aforesaid but not exceeding one superficial square yard in horizontal measurement - -	0	6
And if any such receptacle shall exceed one superficial square yard in horizontal measurement then for every superficial square yard - - - -	0	6
From every person selling by hand any goods commodities or things whatsoever except as hereinbefore mentioned - - - - -	1	0
From every person exposing for sale any goods or commodities in a motor vehicle or cart and not being packed in separate hampers sacks or other packages for every such motor vehicle or every such cart if usually drawn by two horses - -	4	0
And if such cart is usually drawn by one horse -	3	0
And if such cart is usually drawn by an ass or asses mule or mules - - - - -	2	0
For every calf pig sheep lamb or goat exposed for sale -	0	6
For every gig carriage cart or other vehicle exposed for sale - - - - -	2	0
For every horse mare gelding colt or filly exposed for sale in the markets - - - - -	1	0
For every cow bull ox or heifer exposed for sale in the markets - - - - -	1	0
For every ass or mule exposed for sale in the markets - - - - -	0	6
For every horse mare gelding colt filly cow bull ox heifer ass or mule exposed for sale at any of the accustomed annual fairs - - - - -	One-half of the tolls hereinbefore authorised.	

III.—TOLLS FOR WEIGHING AND MEASURING.

(a) For goods not on a vehicle—	s. d.
For any quantity not exceeding 28 lbs. avoirdupois	0 1
For any quantity exceeding 28 lbs. but not exceeding 56 lbs. avoirdupois - - -	0 2
For any quantity exceeding 56 lbs. but not exceeding 112 lbs. avoirdupois - - -	0 3
For any quantity exceeding 112 lbs. avoirdupois for every 112 lbs. or fractional part thereof -	0 3

	s.	d.	A.D. 1937.
(b) For measuring every quantity of goods sold by measure for every bushel or fractional part of a bushel - - - - -	0	1	— 1st SCH. —cont.
(c) For weighing vehicles with or without the loading thereof—			
Under 1 ton - - - - -	0	6	
And in addition for each ton or fraction of a ton over 1 ton - - - - -	0	3	

IV.—TOLLS FOR USE OF SLAUGHTER-HOUSES.

(a) For 48 hours lairage use of slaughter hall and 48 hours hanging in cooling room—			
For every bull ox cow or bullock - - each	5	0	
For every calf - - - - - „	1	0	
For every sheep or lamb - - - - - „	1	0	
For every hog or pig - - - - - „	2	0	
For every other beast - - - - - „	5	0	
(b) For 24 hours or part of 24 hours extra lairage after the first 48 hours or for 24 hours or part of 24 hours lairage in connection with any cattle market—			
For every bull ox cow or bullock - - each	1	0	
For every calf - - - - - „	0	4	
For every sheep or lamb - - - - - „	0	2	
For every hog or pig - - - - - „	0	4	
For every other beast - - - - - „	1	0	

A.D. 1937.

THE SECOND SCHEDULE.

PART I.

Percentage of the full superannuation allowance payable under the Act of 1922 to an officer or servant which may be paid during the joint lives of such officer or servant and his wife in order that (1) his wife shall be entitled to receive during the remainder of her life after his death an annuity equal to one-third of the amount of the superannuation allowance payable during their joint lives and (2) the officer or servant shall be entitled to receive during the remainder of his life after the death of his wife an annuity equal to two-thirds of the amount of the superannuation allowance payable during their joint lives.

Age last birthday of wife at date of retirement of officer or servant.	Age last birthday of officer or servant at date of his retirement.							
	60	61	62	63	64	65	66	67
50	87	—	—	—	—	—	—	—
51	87½	86½	—	—	—	—	—	—
52	88¼	87¼	86	—	—	—	—	—
53	89	88	86¾	85½	—	—	—	—
54	89¾	88¾	87½	86¼	85	—	—	—
55	90½	89½	88¼	87	85¾	84½	—	—
56	91¼	90¼	89	87¾	86½	85¼	84	—
57	92	91	89¾	88½	87¼	86	84¾	83½
58	93	92	90¾	89½	88¼	87	85¾	84¼
59	94	92¾	91¾	90½	89¼	88	86¾	85¼
60	95	93¾	92¾	91½	90¼	89	87¾	86¼
61	96	94¾	93¾	92½	91¼	90	88¾	87¼
62	97	95¾	94¾	93½	92¼	91	89¾	88¼
63	98	96¾	95¾	94½	93¼	92	90¾	89½
64	99¼	98	97	95¾	94½	93¼	92	90¾
65	—	99	98	97	95¾	94½	93¼	91¾
66	—	—	99¼	98¼	97	95¾	94¼	93
67	—	—	—	99½	98¼	97	95¾	94¼

PART II.

A.D. 1937.

Percentage of the full superannuation allowance payable under the Act of 1922 which may be paid to an officer or servant during his lifetime in order that his wife shall be entitled to receive during the remainder of her life after his death an annuity equal to one-third of the amount of such full superannuation allowance.

2ND SCH.
—cont.

Age last birthday of wife at date of retirement of officer or servant.	Age last birthday of officer or servant at date of his retirement.							
	60	61	62	63	64	65	66	67
50	81 $\frac{3}{4}$	—	—	—	—	—	—	—
51	82 $\frac{1}{2}$	81	—	—	—	—	—	—
52	83	81 $\frac{3}{4}$	80 $\frac{1}{4}$	—	—	—	—	—
53	83 $\frac{3}{4}$	82 $\frac{1}{2}$	81	79 $\frac{1}{2}$	—	—	—	—
54	84 $\frac{1}{2}$	83 $\frac{1}{4}$	81 $\frac{3}{4}$	80 $\frac{1}{2}$	78 $\frac{3}{4}$	—	—	—
55	85 $\frac{1}{4}$	84	82 $\frac{3}{4}$	81 $\frac{1}{4}$	79 $\frac{3}{4}$	78	—	—
56	86	84 $\frac{3}{4}$	83 $\frac{1}{2}$	82 $\frac{1}{4}$	80 $\frac{3}{4}$	79	77 $\frac{1}{4}$	—
57	86 $\frac{3}{4}$	85 $\frac{1}{2}$	84 $\frac{1}{4}$	83	81 $\frac{1}{2}$	80	78 $\frac{1}{4}$	76 $\frac{1}{2}$
58	87 $\frac{1}{2}$	86 $\frac{1}{4}$	85	83 $\frac{3}{4}$	82 $\frac{1}{2}$	81	79 $\frac{1}{4}$	77 $\frac{1}{2}$
59	88	87	85 $\frac{3}{4}$	84 $\frac{1}{2}$	83 $\frac{1}{4}$	81 $\frac{3}{4}$	80 $\frac{1}{4}$	78 $\frac{1}{2}$
60	88 $\frac{3}{4}$	87 $\frac{3}{4}$	86 $\frac{1}{2}$	85 $\frac{1}{2}$	84 $\frac{1}{4}$	82 $\frac{3}{4}$	81 $\frac{1}{4}$	79 $\frac{3}{4}$
61	89 $\frac{1}{2}$	88 $\frac{1}{2}$	87 $\frac{1}{2}$	86 $\frac{1}{4}$	85	83 $\frac{3}{4}$	82 $\frac{1}{4}$	80 $\frac{3}{4}$
62	90 $\frac{1}{4}$	89 $\frac{1}{4}$	88 $\frac{1}{4}$	87 $\frac{1}{4}$	85 $\frac{3}{4}$	84 $\frac{1}{2}$	83 $\frac{1}{4}$	81 $\frac{3}{4}$
63	90 $\frac{3}{4}$	90	89	88	86 $\frac{3}{4}$	85 $\frac{1}{2}$	84 $\frac{1}{4}$	83
64	91 $\frac{1}{4}$	90 $\frac{1}{2}$	89 $\frac{3}{4}$	88 $\frac{3}{4}$	87 $\frac{3}{4}$	86 $\frac{1}{2}$	85 $\frac{1}{4}$	84
65	91 $\frac{3}{4}$	91	90 $\frac{1}{4}$	89 $\frac{1}{2}$	88 $\frac{1}{2}$	87 $\frac{1}{2}$	86 $\frac{1}{4}$	85
66	92 $\frac{1}{4}$	91 $\frac{1}{2}$	91	90 $\frac{1}{4}$	89 $\frac{1}{4}$	88 $\frac{1}{4}$	87 $\frac{1}{4}$	86
67	92 $\frac{1}{2}$	92	91 $\frac{1}{2}$	90 $\frac{3}{4}$	90	89	88	87

Printed by EYRE AND SPOTTISWOODE LIMITED

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